

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 14, 2018

Honorable Walter Gorelick
Judge of the Superior Court
County of Tulare
221 S. Mooney Boulevard, Room 303
Visalia, CA 93291

Re: Santos, Ricardo
CDC No.: T70070
Case No.: CR-F-02-89554-2
Date of Sentence: 9/24/2002

Dear Honorable Walter Gorelick:

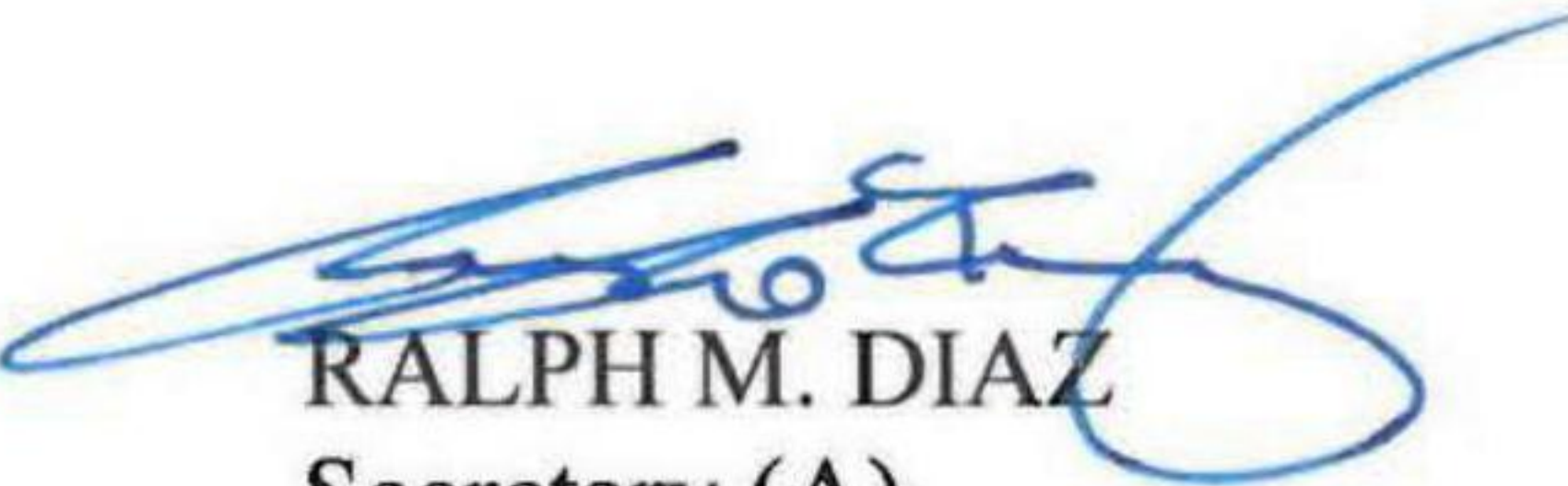
The purpose of this letter is to provide the court with authority to resentence Ricardo Santos pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Santos was sentenced in 2002, and was convicted of section 245, subdivision (B), ASSAULT WITH A FIREARM. The trial court sentenced inmate Santos on 9/24/2002. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Santos's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Santos's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Bret D. Hillman, Tulare County Presiding Judge
Tulare District Attorney
Public Defender

9-24

T70070

**ABSTRACT OF JUDGMENT—PRISON COMMITMENT—DETERMINE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

CR-290.1

☒ SUPERIOR COURT OF CALIFORNIA, COUNTY OF: <u>TULARE</u> ☐ MUNICIPAL BRANCH OR JUDICIAL DISTRICT: <u>TULARE-PIXLEY DIVISION</u>			
PEOPLE OF THE STATE OF CALIFORNIA vs. <u> </u> DOB: <u>7-30-84</u> DEFENDANT: <u>SANTOS, RICARDO</u> AKA: <u> </u> CII#: <u>A21457490</u> BOOKING #: <u> </u> ☐ NOT PRESENT			CASE NUMBER: <u>CR-F-02-89554-2</u>
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT ☐ AMENDED ABSTRACT ☒ SET			
DATE OF HEARING <u>SEPTEMBER 24, 2002</u>	DEPT. NO. <u>1</u>		JUDGE <u>WALTER GORELICK</u>
CLERK <u>JUANITA GIBBS</u>	REPORTER <u>ANDREA WALTER</u>	PROBATION NO. OR PROBATION OFFICER <u>PA-84158</u>	
COUNSEL FOR PEOPLE <u>DDA SHANI D. ENGUM</u>		COUNSEL FOR DEFENDANT ☒ APPTD. <u>DPA GARY PERTUIT</u>	

1. Defendant was convicted of the commission of the following felony:

CNT.	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DAY/YEAR)	CONVICTED BY			TERM (L, M, U)	TIME IMPOSED	
						JURY	COURT	PLEA		YRS.	MOS.
2	PC	245(B)	ASSAULT WITH A FIREARM	2002	08 16 02			☒	M	6	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
2	PC12022.5	3	PC12022.7	3					6

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667(b)-(i) or PC 1170.12 (two-strikes).

5. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. RESTITUTION FINE of: \$ 5,000.00 per PC 1202.4(b) forthwith per PC 2085.5.b. RESTITUTION FINE of: \$ 5,000.00 per PC 1202.45 suspended unless parole is revoked.c. RESTITUTION of: \$ per PC 1202.4(f) to ☐ victim(s)* ☐ Restitution Fund.

(*List victim name(s) if known and amount breakdown in item 7, below.)

(1) ☐ Amount to be determined. (2) ☐ Interest rate of: % (not to exceed 10% per PC 1204.4(f)(3)(F)).d. ☐ LAB FEE of: \$ for counts: per H&SC 11372.5(a).e. ☐ DRUG PROGRAM FEE of \$150 per H&SC 11372.7(a).f. ☐ FINE of: \$ per PC 1202.5.6. TESTING: ☐ AIDS ☐ DNA pursuant to ☐ PC 1202.1 ☐ PC 290.2 ☐ other (specify):7. Other orders (specify): ADDITIONAL 10 YEARS PURS TO 186.22(B)*RESTITUTION TO REMAIN OPEN. NO CONTACT WITH VICT, BY PHONE, FAX, PERSON OR 3RD PARTY.PRIOR TO BEING RELEASED DEF TO PROVIDE 2 SPECIMENS OF BLOOD, SALIVA SAMPLE, RIGHTTHUMPRIENT AND FULL PALM PRINT PURS TO PC296. REG. PURS TO 186.30 AFTER RELEASED.8. TOTAL TIME IMPOSED: 229. ☐ This sentence is to run concurrent with (specify):

10. Execution of sentence imposed

a. ☒ at initial sentencing hearing.d. ☐ at resentencing per recall of commitment. (PC 1170(d).)b. ☐ at resentencing per decision on appeal.e. ☐ other (specify):c. ☐ after revocation of probation.

11. DATE SENTENCE PRONOUNCED <u>SEPTEMBER 24, 2002</u>	CREDIT FOR TIME SPENT IN CUSTODY <u>291</u>	TOTAL DAYS: <u>291</u>	ACTUAL LOCAL TIME <u>253</u>	LOCAL CONDUCT CREDITS <u>38</u>	4019 ☒ 2933.1	SERVED TIME IN STATE INSTITUTION: ☐ DMH ☐ CDC ☐ CRC
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12. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.☐ other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE: <u>Juanita Gibbs</u>	DATE <u>SEPTEMBER 25, 2002</u>
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This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Form Adopted by the
Judicial Council of California
CR-290.1 [Rev. January 1, 1999]

**ABSTRACT OF JUDGMENT—PRISON COMMITMENT—DETERMINE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**

WEST GROUP
Official Publisher

Penal Code,
§§ 1170,
1213, 1213.5